



CONDUCT, DISCIPLINE & APPEAL RULES, 1980

Amended up to 30.07.2025

Indian Oil Corporation Limited

CONDUCT, DISCIPLINE AND APPEAL RULES 1980

1 Short title and commencement

These rules may be called Indian Oil Corporation Conduct, Discipline and Appeal Rules, 1980. They shall come into force on 1st November 1980.

2 Application

These rules shall apply to all employees except:

- those in casual /muster roll employment or paid from contingencies;
- those who are governed, or such of them as come to be governed at any future date, by the Standing Orders certified under the Industrial Employment (Standing Orders) Act, 1946.

3 Definitions:

In these rules, unless the context otherwise requires-

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| 1) | Government | means the Government of India as well as State Government. |
| 2) | Corporation | means the Indian Oil Corporation Limited. |
| 3) | Board | means the Board of Directors of the Corporation and includes, in relation to the exercise of powers, any committee of the Board/Management or any officer of the Corporation to whom the Board delegates any of its powers for the purposes of these Rules. |
| 4) | Chairman | means the Chairman of the Corporation or any other officer who holds charge of the administrative functions of the Chairman for the time being, and includes any other Officer to whom the Board delegates any powers or functions of Chairman for the purpose of these Rules. |
| 5) | Director | means the Functional Director or any other Authority to whom the Board vests the powers or functions of the Director or any other Official who holds charge of the administrative functions of the Director for the time being. |
| 6) | Disciplinary Authority | means the Authority specified in the Schedule appended to these rules, or any Authority higher than it, and competent to impose any of the penalties specified in Rule 29 |
| 7) | Competent Authority | means the Authority as specified in these Rules and failing such specifications means the Authority specified by the Board by any general or special, Resolution, Rule or Order to discharge the function or the powers specified in these Rules or any of them. Wherever not specified, the Disciplinary Authority shall be the Competent Authority. |

8)	Appellate Authority	means the Authority specified in the Schedule appended to these rules
9)	Reviewing Authority	means the Appellate Authority or any Authority higher than it.
10)	Employee	means a person in the employment of the Corporation other than the casual, work charged or contingent staff and includes a person on deputation to the Corporation.
11)	Family	In relation to an employee includes a) the wife or husband as the case may be of the employee, whether residing with him or not, but does not include a wife or husband as the case may be separated from the employee by a decree or order of a competent Court. b) sons or daughters or step-sons or step-daughters of the employee and wholly dependent on him, but does not include a child or step- child who is no longer in any way dependent on the employee or of whose custody the employee has been deprived by or under any law. c) any other person related whether by blood or marriage to the employee or to such employee's wife or husband and wholly dependent on such employee.
12)	Public servant	means and includes a person as mentioned in Section 2 of The Bhartiya Nyaya Sanhita Act of 2023 as amended from time to time.
13)	Sexual Harassment	would mean as defined in Section 2 of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 as amended from time to time.
14)	Internal Committee	means an Internal Complaints Committee constituted by the Corporation in line with Section 4 of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 as amended from time to time.
15)	Person	Unless repugnant to the subject or context thereof, the expression “person” used in these Rules shall include any company or body corporate, proprietorship, partnership or association of persons (whether registered or not), and the singular shall include the plural and vice versa, and the masculine shall include the feminine and vice versa.
16)	Designated employee	Designated Employee – Designated Employee of the Corporation shall have the same meaning as provided under the “The Code for prevention of insider trading in the securities of IndianOil” as hosted on the website of the Corporation www.iocl.com. In case any designated employee separates from the services of the Corporation due to superannuation / resignation /termination etc., he shall continue to be considered as such for a further period of six months subsequent to the date of his separation from the Corporation as envisaged under SEBI (Prohibition of Insider Trading) Regulations, 1992.

- 17) Inquiry Officer** means any serving or a retired Officer of the Corporation or any serving or retired public servant or other person, which expression shall include any substitute(s), appointed by the Disciplinary Authority in lieu of an originally appointed Inquiry Officer, to inquire into the truth of any imputation of misconduct or misbehaviour against an employee thereof.

For cases involving allegations of Sexual Harassment of Women at Workplace, Internal Committee would be considered as the Inquiry Officer but would be known as the Inquiring Authority.

- 18) Presenting Officer** means a person duly appointed under these Rules by the Disciplinary Authority to present, on its behalf, the case in support of the charges.

- 19) Official dealing / Business relations** would mean “Any company or firm, with which the employee has official dealing” means any current or actively and materially pursued prospective company or firm, with whom the employee transacted official business within the prior twelve (12) months period.

4 Scope of service:

Unless in any case it be otherwise distinctly provided, the whole time of an employee shall be at the disposal of the Corporation and he shall serve the Corporation in its business in such capacity and at such place as he may from time to time, be directed.

5 Liability to Abide by Rules and Orders:

Every employee of the Corporation shall conform to and abide by the Rules of the Corporation, as may be made applicable to him from time to time, and shall observe, comply with and obey the orders and directions given to him in the course of his official duties by any person or persons under whose jurisdiction, superintendence or control he may, for the time being be placed.

6 General Conduct:

1) Every employee of the Corporation shall at all times -

- (a) maintain absolute integrity;
- (b) maintain devotion to duty; and
- (c) do nothing which is unbecoming of a public servant.

2) Every employee of the Corporation holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all employees for the time being under his control and Authority.

3) Every employee shall at all times conduct himself soberly and temperately while on the official premises and show proper respect and civility to all concerned and shall use his utmost endeavors to promote the interests of the Corporation and to maintain and promote the good reputation thereof.

4) No employee shall, in the performance of his official duties or in the exercise of powers conferred on him act otherwise than in his best judgement except when he is acting under the direction of his official superior and shall, where he is acting under such direction, obtain the direction in writing wherever practicable, and where it is not practicable to obtain the direction in writing, he shall obtain written confirmation of the directions as soon thereafter as possible.

Explanation:

Nothing in Rule 6(4) shall be construed as empowering an officer to evade his responsibilities by seeking instructions from, or approval of a superior officer or Authority, when such instructions are not necessary under the scheme of distribution of power and responsibility

7 Misconduct:

Without prejudice to the generality of the term 'misconduct', the following acts of omission and commission shall be treated as misconduct rendering an employee liable for disciplinary action:

- 1) Theft, fraud or dishonesty in connection with the business or property of the Corporation or of property of another person within the premises of the Corporation.
- 2) Taking or giving bribes or any illegal gratification, or demanding or offering bribes or any illegal gratification.
- 3) Possession of pecuniary resources or property disproportionate to the known sources of income by the employee or on his behalf by another person, which the employee cannot satisfactorily account for
- 4) Furnishing false/concealing information regarding name, age, parent's name, qualification, Disability, Dependency or previous service or any other matter germane to the employment, at the time of employment or during the course of employment.
- 5) Acting in a manner prejudicial to the interests of the Corporation.
- 6) Wilful insubordination or disobedience, whether or not in combination with other, of any lawful and reasonable order of his superior.
- 7) Absence without leave or overstaying the sanctioned leave.
- 8) Habitual late or irregular attendance.
- 9) Neglect of work or negligence in the performance of duty including malingering or slowing down of work.
- 10) Causing damage to work in progress or to any property of the Corporation either wilfully or through negligence.
- 11) Non-compliance of Safety rules or guidelines, safety precautions or interfering or tampering with any safety devices installed in or about the premises of the Corporation.
- 12) Drunkenness or riotous or disorderly or indecent behaviour in the premises of the Corporation or outside such premises where such behaviour is related to or connected with the employment.
- 13) Gambling within the premises of the establishment.
- 14) Smoking within the premises of the establishment, or using naked lights, where it is prohibited.
- 15) Collection without the permission of the Competent Authority of any money within the premises of the Corporation except as sanctioned by any law of the land for the time being in force or Rules of the Corporation.
- 16) Sleeping while on duty under any pretext, whatsoever.
- 17) Sexual harassment
- 18) Commission of any act which amounts to a criminal offence involving moral turpitude.
- 19) Absence from the employee's appointed place of work without permission or sufficient cause.

- 20) Purchasing properties, machinery, stores etc., for or selling properties, machinery, stores, etc., to the Corporation without express permission in writing from the Competent Authority.
- 21) Engaging in any trade or business without taking permission of the Competent Authority.
- 22) Canvassing in support of the business or Insurance Agency, Commission Agency etc., owned or managed by his spouse or any other member of his family.
- 23) Publication of any article, journal paper or book on any subject prejudicial to the Corporation or connected with any work of the Corporation without the prior permission of the Competent Authority.
- 24) Disclosing to any unauthorised person or persons any information in regard to the working or process of the Corporation, which comes into the possession of the employee during the course of his work.
- 25) Spreading false rumors or giving false information which tends to bring into disrepute the Corporation or its employees or spreading panic among them.
- 26) Levelling malicious or false allegations.
- 27) Occupying or taking possession in an unauthorised manner or refusal to vacate or deliver possession of Corporation's quarter(s) or any of its premises, owned or hired, when required to do so by the Corporation.
- 28) Refusal to accept a charge sheet or order or any other communication from the Management.
- 29) Striking work alone or in combination with other employees, or inciting them to strike work in contravention of the provisions of any law or rules having the force of law.
- 30) Commission of any act subversive of discipline or of good behaviour.
- 31) Abetment of or attempt at abetment of any act, which amounts to misconduct.
- 32) Violation of the Code of Internal Procedures and Conduct for prevention of insider trading in dealing with the Securities of IndianOil by designated employees.
- 33) Using official email, internet or other electronic equipments or facilities provided by the Corporation otherwise for or not in connection with the business of the Corporation.
- 34) Obtaining any advance or withdrawal from the Corporation or any provident or other fund or Trust administered by the Corporation or by Trustees appointed in whole or part by the Corporation by fraudulent means or misrepresentation or false pretences.
- 35) Acting in breach of the requirements of these Rules.
- 36) Misuse/abuse of any scheme/facility provided by the Corporation viz. Medical Scheme, Loans and Advances etc.
- 37) Violations of Social Media Policy/IT Policy of Corporation etc.
- 38) Non-disclosure of any FIR/criminal case initiated/ pending/ concluded against the employee.

Note: The above instances of misconduct are illustrative in nature, and not exhaustive.

8 Absence from Duty / Abandonment of services:

No employee shall absent himself from duty without having obtained the permission of Authority empowered to grant him the leave. No employee shall leave the station, where he is posted, without prior permission of Authority referred to above.

If an employee overstays beyond the period of leave originally granted or subsequently extended or is otherwise absent beyond 21 days continuously without prior permission of or intimation to the Authority empowered to grant him leave, he shall be deemed to be not interested in continuing his services and treated to have voluntarily abandoned the company's services and the Competent Authority may pass orders striking the name of such employee from the rolls of the Corporation.

Provided that prior to passing such an order, the Competent Authority shall send a written notice to the employee, by registered/ speed-post at his last known address and additionally by E-mail(s)/ any other mode of communication, on record informing the employee that if he does not report for duty at his place of posting within 10 (Ten) days from the date of receipt of notice, he shall be deemed to be not interested in continuing his services and to have abandoned his employment and his name shall be struck off from the rolls of the Corporation.

9 Acceptance of Rewards:

1) Except in the following cases, an employee of the Corporation shall not without the prior approval of the Competent Authority accept a reward from any source:

(a) the premium awarded for any essay or plan in Public competition.

(b) any reward offered for the arrest of a criminal or for information or special service in connection with the administration of justice.

(c) any reward payable in accordance with the provisions of any Act or Regulation or Rules framed thereunder.

(d) any reward sanctioned for services in connection with the administration of the Customs and Excise Laws; and

(e) any fee payable to an employee for duties which he is required to perform in his official capacity under any special or local law by order of Government.

2) The Competent Authority for the purpose of this Rule is:

(a) In the case of an Officer below the rank of officer in Grade H, the officer in Grade H to whom the Officer directly or indirectly reports

(b) In the case of Officer of the rank of officer in Grade H and above, the Functional Director of the Division concerned

9A Patent for Inventions made:

1) Every employee shall, within one month of taking up his employment furnish the Corporation with:

(a) a list of all patents held by him or applied for in India or abroad whether in his own name or jointly with another person (s)/ organization(s)

(b) a list of all patents and patent applications in India and abroad where he/she is mentioned as an Inventor;

(c) Every employee expressly acknowledges and agrees that he shall not assert any ownership rights over any patent, improvements, inventions made and/or processed or discovered or worked upon by the employee, whether applied for or granted in India or abroad, that may be created during the course of his employment with the Corporation. Furthermore, the employee shall promptly disclose to the Corporation any such patents applied for or granted, whether in India or abroad. Such disclosure shall include all necessary and relevant details in a comprehensive manner, including but not limited to the patent application number, jurisdiction, and any co-applicants involved.

Intellectual property rights in all improvements, inventions made and/or processed or discovered or worked upon by an employee during the course of his employment with the Corporation shall belong to and vest exclusively in the Corporation, and the Corporation shall have the exclusive right to use, apply or deal with the same.

No employee of the Corporation shall, except with the previous written sanction of the Functional Director of the Division concerned, disclose to any other person or permit use in any manner by any other person or apply for or cause to permit any other person to apply for or to obtain in India or abroad any patent, patent of additions, licence, rights, privilege, or the like protection in respect of any improvement, invention or process, under any Act, Statute, Statutory Orders, Regulations or otherwise in force for the time being in India or abroad in respect of any improvement, invention or process, the intellectual property in respect of which vests in or otherwise belongs to the Corporation

If such improvement, invention or process has been made, discovered or obtained by the employee during the course of his employment with the Corporation, he shall upon request of the Functional Director or his nominee forthwith disclose a full and complete description of the said improvement, invention or process and the mode of performing the same within 30 days and shall absolutely assign and transfer in favour of the Corporation, at its cost, the intellectual property rights in such improvement, invention or process [whether patented or not] for a consideration of Re. 1/- within 30 days. In the event of such a request being made by the Competent Authority, the employee shall sign, within 30 days, all applications, deeds, instruments, assurances, documents, papers, conveyances, etc. as the said Competent Authority may in his opinion require for the vesting of the rights under and by virtue of these provisions wholly and absolutely in the Corporation.

2) All inventions including improvements or modifications thereon or processes made or discovered by the employee during the course of his employment with the Corporation shall be absolute property of the Corporation and he shall hold the same in trust for it. The Corporation may at its sole discretion recognize the inventor/inventors their name/names will be mentioned in the patent. The Corporation shall not however be obliged to pay any fee, royalty or any other consideration whatsoever for the use of any such inventions or process.

3) Save as otherwise provided in these rules, no employee shall assign, grant any licence, or create any charge or interest in favour of any person to make use of or otherwise deal with any such invention or process [whether patented or not] he has made, discovered or obtained during the course of his employment with the Corporation.

4) No employee, whether during or after a period of his service with the Corporation, shall, except for the purpose of the business of the Corporation and with the previous written sanction of the Competent Authority publish or cause to be published, disclose or otherwise make known in any manner whatsoever such inventions or process.

Note: the word 'invention' occurring in these rules shall have the meaning assigned to it under the "Patents Act, 1970".

10 Forwarding of Application:

No employee shall forward his application for employment to any Government Central/State) or semi-Government Department or Public Undertaking (in India or abroad) except in accordance with the Rules framed by the Corporation in this behalf. No employee shall forward an application for an award of a fellowship, scholarship, etc., direct to any Authority unless the application is sponsored by the Corporation and he is permitted to take up such a fellowship or scholarship.

11 Employment of Family members of the employees of the Corporation in any Company or firm having official dealings with the Corporation:

1) (a) No employee shall use his position or influence directly or indirectly to secure employment for any person related, whether by blood or marriage, to the employee or to the employee's wife or husband, whether such a person is dependent on the employee or not.

(b) No employee shall, except with previous sanction of the Competent Authority, permit his son, daughter or any member of the family to accept employment with any company or firm, with which he has official dealing or with any other firm having official dealings, with the Corporation.

Provided that where the acceptance of the employment cannot await the prior permission of the Competent Authority, the employment may be accepted provisionally subject to the permission of the Competent Authority to whom the matter shall be reported forthwith.

2) The Competent Authority for the purpose of this Rule is:

(a) In the case of Officer below Grade H, the officer in Grade H to whom the Officer directly or indirectly reports

(b) In the case of Officer in Grade H and above, the Functional Director of the Division concerned.

No employee shall in the discharge of his official duties deal with any matter or give or sanction any contract to a company or firm or any other person if any member of his family is employed in that company or firm or under that person or if he or any member of his family is interested in such matter or contract or in any other matter and the employee shall refer every such matter or contract to his official superior and the matter or the contract shall thereafter be disposed of according to the instruction of the Authority to whom the reference is made.

12(A) Taking part in politics and elections:

1) No employee shall be an office-bearer of a political party or an organisation which takes part in politics.

2) No employee shall take part in or assist in any manner in any movement / agitation or demonstration of a political nature.

3) No employee shall contest in an election to any legislature or local Authority or otherwise take part in such an election as for example by proposing /seconding the nomination of a candidate at such an election or acting as a polling agent:

Provided that:-

(a) An employee qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;

(b) An employee shall not be deemed to have contravened the provisions of this sub- rule by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force.

4) No employee shall canvass in, or use his influence in connection with, any election to any legislature or local Authority.

Explanation: The display by an employee on his person, vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-rule.

12(B) Taking part in demonstrations:

No employee of the Corporation shall engage himself or participate in any demonstration which involves incitement to an offence.

13 Connection with Press, Radio or Television:

1) No employee of the Corporation shall, except with the previous sanction of the Competent Authority, own wholly or in part, or conduct or participate in the editing or management of any newspaper or other periodical or publication.

2) No employee of the Corporation shall, except with the previous sanction of the Competent Authority, or in the bonafide discharge of his duties, participate in a radio or TV broadcast or contribute any article or write any letter in his own name or anonymously, pseudonymously or in the name of any other person to any newspaper or periodical purporting to express any views on behalf of the Corporation or disclosing any information relating to the Corporation or its affairs.

3) The Competent Authority for the purpose of this Rule is:

(a) In the case of Officer below Grade H, the officer in Grade H to whom the Officer directly or indirectly reports

(b) In the case of the Officer in Grade H and above, the Functional Director of the Division concerned

14 Criticism of Government or Corporation or any of its Directors or Officers in Senior Management:

No employee shall, in any radio/TV broadcast or social media or any other digital platform or in any document or letter or circular published under his name singly or jointly with another or others or in the name of any other person(s) or in any communication to the press or other media, or in any public utterance, make any statement:

1) which criticises any policy or action of the Central Government or of the Corporation or any of its Directors or Officers in Senior Management; or

2) which is capable of embarrassing the relations between the Corporation and the public or the Management of the Corporation and its employees.

Provided that nothing in this Rule shall apply to any statement made or views expressed by an employee, of a purely factual nature which are not considered to be of a confidential nature, in his official capacity as an Officer of the Corporation or in due performance of the duties assigned to him as an Officer of the Corporation.

Note: Any bonafide expression of views by an employee as office bearer of a recognized trade union strictly for the purpose of safeguarding the conditions of service of such employees or for securing an improvement thereof would not fall in the purview of this Rule.

15 Evidence before Committee or any other Authority:

1) Save as provided in sub-rule (3), no employee of the Corporation shall, except with the previous sanction of the Competent Authority, give evidence in connection with any enquiry conducted by any person, Committee or Authority.

2) Where any sanction has been accorded under sub-rule(1), no employee giving such evidence shall criticise the policy or any action of the Central Government or of a State Government or of the Corporation .

3) Nothing in this Rule shall apply to:-

(a) evidence given at any enquiry before an Authority appointed by the Government, Parliament or a State Legislature or the Corporation.

(b) evidence given in any judicial enquiry; or

(c) evidence given at any departmental enquiry ordered by authorities subordinate to the Government.

16 Unauthorised communication of Information:

No employee shall, except in accordance with any general or special order of the Competent Authority or in the performance in good faith of the duties assigned to him, communicate, directly or indirectly any official document or any part thereof or information to any employee, or any other person to whom he is not authorised to communicate such document or information.

17 Gifts:

1) Save as otherwise provided in these Rules, no employee of the Corporation shall accept or permit any member of his family or any other person acting on his behalf, to accept any gift.

Explanation: The expression 'gift' shall include free transport, boarding, lodging or other service or any other pecuniary advantage when provided by any person other than a near relative or a personal friend having no official dealing with the employee.

Note: An employee of the Corporation shall avoid acceptance of lavish or frequent hospitality from any individual or firm having official dealings with him.

2) On occasions such as weddings, anniversaries, funerals or religious functions, when the making of gift(s) is in conformity with the prevailing religious or social practices, an employee of the Corporation may accept gift(s) from his near relative(s) and personal friend(s) having no official dealings with him, but shall make a report to the Competent Authority if the value of the gift(s) exceeds ₹25,000/-

3) In any other case, an employee of the Corporation shall not accept or permit any member of his family or any other person acting on his behalf to accept any gift without the sanction of the Competent Authority if the value of the gift exceeds ₹5000/-

Provided that when more than one gift has been received from the same person within a period of 12 months, the matter shall be reported to the Competent Authority if the aggregate value of the gifts exceeds ₹25000/-.

18 Dowry:

No employee of the Corporation shall-

1) give or take or abet the giving or taking of dowry; or

2) demand, directly or indirectly, from the parents or guardian of a bride or bridegroom, as the case may be, any dowry.

Explanation: For the purpose of this rule 'Dowry' has the same meaning as in the Dowry Prohibition Act, 1961 (29 of 1961).

19 Private Trade or Employment:

1) No employee shall, except with the previous sanction of the Competent Authority, engage directly or indirectly in any trade or business or undertake any other employment.

Provided that an employee, may without such sanction, undertake honorary work of a social or charitable nature or occasional work of a literary, artistic or scientific character, subject to the conditions that his official duties do not thereby suffer; but he shall not undertake or shall discontinue, such work if so directed by the Competent Authority.

2) Every employee shall report to the Competent Authority if any member of his family is engaged in a trade or business or owns or manages an insurance agency or commission agency.

3) No employee shall without the previous sanction of the Competent Authority except in the discharge of his official duties, take part in the registration, promotion or management of any bank or other company which is required to be registered under the Companies Act 1956 (1 of 1956) or other law for the time being in force or any Co-operative Society for commercial purposes:

Provided that an employee may take part in the registration, promotion or management of consumer/House Building Co-operative Society substantially for the benefit of employees of the Corporation, registered under the Co-operative Societies Act 1912 (2 of 1912) or any other law for the time being in force or of a literary, scientific or charitable society registered under the Societies Registration Act 1860 (21 of 1860) or any corresponding law in force.

4) No employee shall accept any fee or any pecuniary advantage for any work done by him for any public body or any private person without the sanction of the Competent Authority.

The Competent Authority for the purpose of this Rule is:

(a) In the case of Officer below Grade H, the officer in Grade H to whom the Officer directly or indirectly reports.

(b) In the case of the Officer in Grade H and above, the Functional Director of the Division concerned

5) No Functional Director of the Company including the Chief Executive, who has retired from the service of the company, after such retirement/resignation, shall accept any appointment or post, whether advisory or administrative, in any firm or company, whether Indian or foreign, with which the company has or had business relations, within one year from the date of retirement without prior approval of the Government.

The term retirement includes resignation but not the cases of those whose term of appointment was not extended by Government for reasons other than proven misconduct. The terms 'business relations' includes 'official dealing' as well.

6) No below Board Level Officer of the Corporation, who has retired/resigned from the service of the Corporation, after such retirement/resignation, shall accept any appointment or post, whether advisory or administrative or otherwise, in any firm or company, whether Indian or foreign, with which the Company has or had business relations, within one year from the date of retirement /

resignation without prior approval of the Competent Authority. The term 'business relations' includes 'official dealing' as well.

The Competent Authority for the purpose of this Rule, shall be:

- (a) In the case of Officer below Grade H, the concerned Functional/Divisional Director;
- (b) In the case of Officer in Grade H and above, the Chairman.

20 Investment, lending and Borrowing:

No employee shall, save in the ordinary course of business with a bank, the Life Insurance Corporation or a firm of standing, borrow money from or lend money to or otherwise place himself under pecuniary obligation to any person with whom he has or is likely to have official dealings or permit any such borrowing, lending or pecuniary obligation in his name or for his benefit or for the benefit of any member of his family.

20 (A) Speculation of stock/shares of companies:

1) No employee shall speculate in any stock, share or other investment: Provided that nothing in this sub-rule shall apply to occasional investments made through stock brokers or other persons duly authorized and licensed or who have obtained a certificate of registration under the relevant law.

Explanation - Frequent purchase or sale or both, of shares, securities or other investments shall be deemed to be speculation within the meaning of this sub-rule.

2) Every employee shall annually or with such other periodicity as may be prescribed, submit a report in writing to the Head of HR of the Unit/Region with which he is concerned, giving the details of transactions in shares, securities, debentures or mutual funds scheme etc. where total of such transactions in a calendar year exceed six months' of basic pay of such employee.

21 Insolvency and Habitual Indebtedness:

1) An employee shall avoid habitual indebtedness unless he proves that such indebtedness or insolvency is the result of circumstances beyond his control and does not proceed from extravagances or dissipation.

2) An employee who applies to be, or is adjudged or declared insolvent shall forthwith report the fact to his Competent Authority.

22 Movable, Immovable and Valuable Property:

1) For the purpose of this Rule:

(a) "Immovable Property" means land, building, or rights in or attached to land or building (including by way of lease or mortgage) belonging to an employee or acquired out of the funds of an employee in the name of any member of his family.

(b) "Movable Property" means property other than immovable property, held by or belonging to an employee or acquired out of the funds of an employee in the name of any member of his family and will include insurance policies and loans.

2) An employee shall not except with previous written intimation to the officer not below the rank of Grade H to whom he reports, directly or indirectly acquire or dispose of any immovable property

- 3) An employee shall not except with the previous sanction in writing of the first person of the rank of Grade H to whom he reports in the chain of command, directly or indirectly acquire from or otherwise sell any immovable or movable property to a person having official dealings with the employee or his superior or subordinate.
- 4) Every employee shall report in writing to the Head of HR of the Unit/Region with which he is concerned, every transaction concerning movable property as and when it occurs if the value of such property or the amount of premium (in the case of insurance policy) or loan, as the case may be, exceeds two months' basic pay of such employee at the time of transaction.
- 5) Every employee shall on his first appointment in the Corporation and thereafter annually or with such other periodicity as may be prescribed, submit a statement of immovable property and movable property and of his assets and liabilities in such form as is prescribed in this behalf.
- 6) The Competent Authority may, at any time, by general or special order require an employee to submit, within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him or by any member of his family as may be specified in the order. Such statement shall, if so required by the Competent Authority, include details of the means by which or the source from which such property was acquired.

22(A) Dealing in shares:

- 1) When the Corporation issues shares by way of Initial Public Offer (IPO)/Follow-on Public Offer (FPO), a full time Director or any executive/employee involved in the decision making process of fixation of price of an IPO/FPO of shares of the Corporation shall not apply either himself/herself or through any member of his/her family or through any other person acting on his/her behalf for allotment of shares (which includes all types of equity related instruments) in an IPO/FPO of the Corporation, even out of the category of preferential quota reserved for Employees/Directors of the Corporation.
- 2) When the Corporation issues shares by way of Initial Public Offer (IPO)/Follow-on Public Offer (FPO), all Executives/employees including full-time Directors of the Corporation who are in possession of unpublished price sensitive information would be prohibited from dealing/ transacting either in their own name or through any member of their family in the shares of the Corporation.
- 3) Full-Time Director or Executive/employees of the Corporation or any member of his/her family or any person acting on his/her behalf shall not apply for shares out of any preferential quota reserved for employees/Directors of other companies.
- 4) All employees of the Corporation would be required to disclose to the Competent Authority, all transactions of purchase/sale in Corporation's share worth two months basic pay or more in value or existing holding/interest in the shares of the Corporation worth two months basic pay or more either in his/her own name or in the name of any family member to report to the Competent Authority indicating quantity, price, date of transaction and nature of interest, within 4 working days.

23 Other Influence:

No employee shall bring or attempt to bring any outside influence to bear upon any superior Authority to further his interests in respect of matters pertaining to his service in the Corporation.

24 Marriages:

- 1) No employee shall enter into, or contract a marriage with a person having a spouse; and

- 2) No employee, having a spouse, shall enter into, or contract a marriage with any person.
- 3) The employee who has married or marries a person other than that of Indian nationality, shall forthwith intimate the facts to the Competent Authority.
- 4) The employee shall report in writing to the Head of HR of Unit/Region, with which he is concerned, about any change in marital status as and when it changes.

25 Consumption of Intoxicating Drinks and Drugs:

An employee of the Corporation shall:

- 1) strictly abide by any law relating to intoxicating drinks or drugs in force in any areas in which he may happen to be for the time being;
- 2) not be under the influence of any intoxicating drink or drug during the course of his duty and shall also take due care that the performance of his duties at any time is not affected in any way by the influence of such drink or drug;
- 3) refrain from consuming any intoxicating drink or drug in a public place;
- 4) not appear in a public place in a state of intoxication;
- 5) not use any intoxicating drink or drug to excess

Explanation:

For the purpose of this rule, 'public place' means any place or premises to which the public have or are permitted to have access, whether on payment or otherwise.

26 Suspension:

- 1) The Disciplinary Authority or any other Authority empowered in that behalf by the Management by general or special order may place an employee under suspension
 - (a) where a disciplinary proceeding against him is contemplated or is pending; or
 - (b) where a case against him in respect of any criminal offence is under investigation or trial.
- 2) An employee who is detained in police custody, whether on a criminal charge or otherwise, for a period exceeding 48 hours shall be deemed to have been suspended with effect from the date of detention, by an order of the Disciplinary Authority, and shall remain under suspension until further orders.
- 3) Where a penalty of dismissal or removal from service imposed upon an employee under suspension is set aside on appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal or removal and shall remain in force until further orders.
- 4) Where a penalty of dismissal or removal from service imposed upon an employee is set aside or declared or rendered void in consequences of or by a decision of a court of law and the Disciplinary Authority, on consideration of the circumstances of the case, decides to hold a further enquiry against him on the allegation on which the penalty of dismissal or removal was originally imposed, the employee shall be deemed to have been placed under suspension by the Disciplinary Authority from the date of the original order of dismissal or removal and shall continue to remain under suspension until further orders.

5) An order of suspension made or deemed to have been made under this rule shall be reviewed by the Authority which is competent to revoke the suspension, any time but not later than ninety days from the date of order of suspension and pass orders either extending or revoking the suspension. Subsequent reviews shall be made before expiry of the extended period of suspension on regular intervals not exceeding ninety days at a time.

However, the suspension will not be revoked for employees who are detained in custody as per Rule 26(2).

6) The suspended employee shall not leave the station unless otherwise specifically instructed or permitted.

27 Subsistence Allowance:

1) An employee under suspension shall be entitled to draw subsistence allowance equal to 50 percent of his basic pay provided the Disciplinary Authority is satisfied that the employee is not engaged in any other employment or business or profession or vocation. In addition, he shall be entitled to Dearness Allowance and any other compensatory allowance of which he was in receipt on the date of suspension, as admissible on such subsistence allowance. However, payment of any other compensatory allowance can be authorised up to the full rate at which he was in receipt of on the date of suspension, subject to the approval of the suspending Authority after satisfying that the employee continues to meet the expenditure for which the allowance was granted.

(a) The employee needs to furnish on the 1st day of each month that he/she was not engaged in the previous month in any employment, business, profession or vocation during the period to which such claim relates. However, the period during which an employee is detained in custody shall be excluded.

2) Where the period of suspension exceeds six months, the Authority which made or is deemed to have made the order of suspension shall be competent to vary the amount of subsistence allowance for any period subsequent to the period of the first six months as follows:-

(a) The amount of subsistence allowance may be increased to 75% of basic pay and allowances thereon, if in the opinion of the said Authority the period of suspension has been prolonged for reasons to be recorded in writing not directly attributable to the employee under suspension;

(b) The amount of subsistence allowance may be reduced to 25% of basic pay and allowances thereon if in the opinion of the said Authority the period of suspension has been prolonged due to the reasons to be recorded in writing, directly attributable to the employee under suspension.

3) If an employee is arrested by the police on a criminal charge and bail is not granted, no subsistence allowance is payable. On grant of bail, if the Competent Authority decides to continue the suspension, the employee shall be entitled to subsistence allowance from the date he is granted bail.

28 Treatment of the Period of Suspension:

1) When the employee under suspension is reinstated, the Competent Authority may grant to him the following pay and allowances for the period of suspension:-

(a) If the employee is exonerated and not awarded any of the penalties mentioned in Rule 29 or if the employee is acquitted/ discharged by the Court in a criminal trial, the full pay and allowances which he would have been entitled to if he had not been suspended, less the subsistence allowance / amount(s) already paid to him; and

(b) If otherwise, such proportion of pay and allowances as the Competent Authority may prescribe.

2) In a case falling under sub-clause (a) the period of absence from duty will be treated as a period spent on duty. In a case falling under sub-clause (b) it will not be treated as a period spent on duty unless the Competent Authority so directs.

29 Penalties.

One or more of the following penalties may be imposed on an employee for, misconduct committed by him, and different penalties may be imposed for different acts or omissions of misconduct, whether covered by one or different Charge Sheets.

Minor penalties

- 1) Censure
- 2) Fine upto Rs 50,000
- 3) Withholding of increments of pay without cumulative effect
- 4) Withholding of promotion for a specified term upto 6 (six) months
- 5) Reduction of pay upto 3 (three) lower stages for one year without cumulative effect.

Major penalties

- 6) Withholding of increments of pay with cumulative effect
- 7) Reduction of pay to any lower stage(s) in grade pay scale with cumulative effect
- 8) Recovery from pay or such other amount as may be due to him of the whole or part of any pecuniary loss caused to the Corporation by negligence or breach of orders or the acts of omission and commission
- 9) Withholding of promotion for a specified term of more than 6 (six) months
- 10) Reduction to a lower grade
- 11) Compulsory retirement
- 12) Removal from service
- 13) Dismissal

Explanation:

The following shall not amount to a penalty within the meaning of this Rule:-

- 1) A warning/ caution/ counselling, oral or in writing.
- 2) Withholding of increment of an employee, in accordance with the specific terms of contract for unsatisfactory work during the year;
- 3) Non-promotion, whether in an officiating capacity or otherwise, of an employee, to a higher post for which he may be eligible for consideration but for which he is not found suitable or not selected after consideration of his case;
- 4) Reversion to a lower grade or post, of an employee officiating in a higher grade or post on the expiry of the term, or on the ground that he is considered, after trial, to be unsuitable for such higher grade or post, or on administrative grounds unconnected with his conduct;
- 5) Reversion to his previous grade or post, of an employee appointed on probation to another grade or post, during or at the end of the period of probation, including any extension(s) thereof.

6) Termination of Service:

- (a) of an employee appointed on probation, during or at the end of the period of probation including any extension(s) thereof, in accordance with the terms of his appointment;
- (b) of an employee appointed in a temporary capacity otherwise than under a contract or agreement, on the expiration of the period for which he was appointed, or earlier in accordance with the terms of his appointment;
- (c) of an employee appointed under a contract or agreement, on expiry of the tenure of his contract or earlier in accordance with the terms of such contract or agreement; and
- (d) of an employee on retrenchment;
- (e) of an employee prematurely retired under Rule 39

30 Disciplinary Authority:

The Disciplinary Authority, as specified in the schedule, or any Authority higher than it may impose any of the penalties in Rule 29 on any employee.

31 Procedure for Imposing Major Penalties:

1) No order imposing any of the major penalties specified in Rule 29 shall be made except after an inquiry is held in accordance with this Rule.

Provided that where there is a complaint of sexual harassment, the Internal Committee constituted under Section 4 of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, for inquiring into such complaints, shall be deemed to be the Inquiry Officer appointed by the Disciplinary Authority for the purpose of these rules. The Report of Internal Committee shall be adopted as Inquiry Report.

2) Wherever the Disciplinary Authority is of the opinion that there are grounds for inquiry into the truth of any imputation of misconduct or misbehaviour against an employee, may itself inquire into, or appoint an Inquiry Officer to inquire into the truth thereof.

3) Where it is proposed to hold an inquiry, the Disciplinary Authority shall frame definite charges on the basis of the allegations, against the employee. The charges, together with a statement of the allegations, on which these are based, a list of documents by which and a list of witnesses by whom, the articles of charge are proposed to be sustained, shall be communicated in writing to the employee, who shall be required to submit within such time as may be specified by the Disciplinary Authority, a written statement whether he admits or denies any of or all of the articles of charge.

4) On receipt of the written statement of the employee, or if no such statement is received within the time specified, an inquiry may be held by the Disciplinary Authority itself, or by an Inquiry Officer so appointed by the Disciplinary Authority under sub-clause(ii).

Provided that it may not be necessary to hold an inquiry in respect of the charges admitted by the employee in his written statement. The Disciplinary Authority shall, however, record the admission(s) and its consequent findings on each such charge, and may proceed to impose penalty on the basis of such admission(s) with or without proceedings to hold an inquiry into the charges not admitted.

5) Where the Disciplinary Authority itself inquires or appoints an Inquiry Officer for holding an inquiry, it may, by an order, appoint a 'Presenting Officer' to present on its behalf the case in support of the charges.

6) The employee may take the assistance of any employee of the Corporation or any other public servant (only in respect of cases where the presenting officer appointed is a nominee of C.B.I) subject to such Rule or guideline as may be notified from time to time.

7) On the date fixed by the Inquiry Officer, the employee shall appear before the Inquiry Officer as per the date, time, place and mode of conducting inquiry specified in the notice. The Inquiry Officer shall ask the employee whether he pleads guilty or has any defence to make and if he pleads guilty to any of the charges, the Inquiry Officer shall record the plea, sign the record and ask the employee concerned to also sign thereon. The Inquiry Officer shall, return a finding of guilt in respect of those charges to which the employee concerned pleads guilty.

8) If the employee does not plead guilty, the Inquiry Officer shall proceed with the case and direct the Presenting Officer to lead his evidence. In case the charge-sheeted employee makes a request for inspection of related documents and /or production of witness(es), the Inquiry Officer will consider the request and take appropriate action. The relevance of the document and the witness(es) will have to be given by the employee concerned and the documents and/or the witness(es) shall be summoned if the Inquiry Officer is satisfied about their relevance to the charge under inquiry.

9) The Inquiry Officer shall ask the Authority in whose custody or possession the documents are kept, for the production of the documents on such date as may be specified.

10) The Authority in whose custody or possession the requisitioned documents are, shall arrange to produce the same before the Inquiry Officer on the date, place and time specified in the requisitioned notice.

Provided that the Authority having the custody or possession of the requisitioned documents may claim privilege if the production of such documents will be against the public interest or the interest of the Corporation are subject to an obligation of confidentiality. In that event, it shall inform the Inquiry Officer accordingly. The Inquiry Officer shall determine the claim of privilege, and if satisfied that the claim is justified in whole or part, shall either uphold the claim or direct the document(s) to be produced subject to such deletions as he considers necessary to protect the privilege, provided that the Inquiry Officer shall not direct the production of any document which is subject to an obligation of confidentiality on the part of the Corporation.

11) During the course of the inquiry, the oral and documentary evidence by which the charges are proposed to be proved shall be produced by or on behalf of the Disciplinary Authority. The witness(es) shall be examined by or on behalf of the Presenting Officer and may be cross examined by or on behalf of the employee. The Presenting Officer shall be entitled to re-examine the witness(es) on any points on which they have been cross-examined, but not on a new matter, without the leave of the Inquiry Officer. The Inquiry Officer may also put such questions to the witnesses as it thinks fit.

12) The Inquiry Officer may, in its discretion, at any stage allow the Presenting Officer or employee to produce evidence not included in the charge-sheet or may itself call for new evidence or recall or re-examine any witness. In such case the employee or the Presenting Officer as the case may be, shall be given opportunity to inspect the documentary evidence and to cross-examine a witness, who has been so summoned, and to present any additional evidence which he may wish to produce as a result.

13) When the case for the Disciplinary Authority is closed, the employee shall be asked to present his defence and produce evidence.

14) The employee may examine himself in his own behalf if he so prefers. The witness(es) produced by the employee shall then be examined and shall be liable to cross- examination and re-examination according to the provisions applicable to the witness(es) for the Disciplinary Authority. The Inquiry Officer may also put such questions to the witness(es) as it thinks fit.

15) The Inquiry Officer may, after the employee closes his case, and shall, if the employee has not examined himself, generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the employee to explain any circumstance appearing in the evidence against him.

16) After the completion of the production of the evidence the employee and the Presenting Officer may file written briefs of their respective cases, within 15 days of the date of completion of the production of evidence.

17) If the employee does not submit the written statement of defence referred to in sub-rule (3) on or before the date specified for the purpose or does not appear in person or through the assisting employee or otherwise fails or refuses to comply with any of the provisions of these Rules, the Inquiry Officer may hold or continue the inquiry ex-parte.

Provided that before the inquiry proceedings are held or continued ex-parte, the Inquiry Officer shall provide at least 3 opportunities to the charged employee by sending a copy of his order by registered/ speed-post at his last known address and additionally by E-mail(s)/ any other mode of communication as the case may be, directing the charged employee to join the proceedings.

The Inquiry Officer should record the reasons why he is proceeding ex-parte. The employee may, if he so deems fit, rejoin the proceedings before the Inquiry Officer at any stage, before the conclusion of the inquiry without any right to re-open the proceedings or any of them conducted ex-parte unless he can satisfy the Inquiry Officer that he was prevented from attending such proceeding(s) for sufficient cause.

18) Whenever any Inquiry Officer, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein and is succeeded by another Inquiry Officer which has, and exercises, such jurisdiction, the Inquiry Officer so succeeding may act on the evidence so recorded by its predecessor or partly recorded by its predecessor and partly recorded by itself. Provided that if the succeeding Inquiry Officer is of the opinion that further examination of any of the witness(es) whose evidence has already been recorded is necessary in the interest of justice, it may recall, examine, cross-examine and re-examine any such witness(es) as herein before provided.

19) (a) After the conclusion of the Inquiry, a report shall be prepared by the Inquiry Officer and it shall contain-

- (i) An introductory paragraph in which references to the orders of appointment of Inquiry Officer and Presenting Officer and engagement of Defence Assistant will be made;
- (ii) Brief account of hearings, marking of exhibits, recording of evidence;
- (iii) Reproduction of articles of charge(s);
- (iv) Indication about charge(s) which are dropped, or admitted, or have been inquired into;
- (v) Brief statement of the case of the Disciplinary Authority in respect of the charge(s) inquired into;
- (vi) Brief statement of the case of the Charged Officer;
- (vii) For each charge inquired into –
 - i. a gist of the charges
 - ii. the case in support of the charge
 - iii. the case of defence
 - iv. assessment of evidence and
 - v. the findings.
- (viii) A brief summary of the findings.

Explanation:

If in the opinion of the Inquiry Officer the proceedings of the inquiry establish any charge different from the original charge with regard to the transaction(s) or event(s) or acts or omissions or series of transactions or events or acts or omissions which form the subject matter of the charge(s), whether in addition to or in lieu of the original charge(s), it may record its findings on such charge;

Provided that the findings on such charge shall not be recorded unless the employee has either admitted the fact on which such charge is based or the essentials of the evidence, if any, on which such charge is based have been duly recorded by the Inquiry Officer and the employee has had a reasonable opportunity of defending himself against such charge. To this end, if the Inquiry Officer is of opinion that the evidence indicates such charge, he shall frame such charge and communicate the charge to the employee and give the Presenting Officer an opportunity to produce any further evidence he can produce in support of the charge and give the employee an opportunity to defend such charge in the same manner as the charge(s) in the original charge sheet and the procedures with respect thereto shall mutatis mutandis apply.

19) (b) The Inquiry Officer, where it is not itself the Disciplinary Authority, shall forward to the Disciplinary Authority the records of inquiry which shall include-

- (i) the report of the inquiry prepared by it under sub-rule 19(a) above;
- (ii) the oral and documentary evidence produced in the course of the inquiry;
- (iii) written briefs referred to in sub-rule(16), if any, and
- (iv) the orders, if any, made by the Disciplinary Authority and the Inquiry Officer in regard to the inquiry.

32 Action on the Inquiry Report:

1) The Disciplinary Authority, if it is not itself the Inquiry Officer, may for reasons to be recorded by it in writing remit the case to the Inquiry Officer for fresh or further inquiry and report and the Inquiry Officer shall thereupon proceed to hold the further inquiry according to the provisions of Rule 31 as far as may be.

2) Before the Disciplinary Authority arrives at its own conclusions with regard to the guilt or innocence of the employee with regard to the charge/charges levelled against him after taking into consideration the inquiry report, the Disciplinary Authority shall, provided it agrees with the findings of the Inquiry Officer, furnish a copy of the Inquiry Officer's report to the employee to enable him make his representation against the findings in the report within 10 days of the receipt of the inquiry report, if he so desires.

3) The Disciplinary Authority shall, if it disagrees with the findings of the Inquiry Officer on any charge, record its reasons for such disagreement. Before arriving at its own conclusion with regard to the guilt or innocence of the employee with regard to such charge, the Disciplinary Authority shall furnish to the employee his reasons for such disagreement together with a copy of the Inquiry Officer's report with reference to Rule 31. The Disciplinary Authority shall record its own findings with regard to such charge(s) after taking into account the representation, if any made by the employee.

4) If the Disciplinary Authority having regard to its findings on all or any of the charges is of the opinion that any of the penalties specified in Rule 29 should be imposed on the employee, it shall, notwithstanding anything contained in Rule 33, make an order imposing such penalty.

5) If the Disciplinary Authority, having regard to its findings on all or any of the charges, is of the opinion that no penalty is called for, it may pass an order exonerating the employee concerned.

33 Procedure for Imposing Minor Penalties:

1) Where it is proposed to impose any of the minor penalties specified in Rule 29, the employee concerned shall be given a charge-sheet stating the alleged charges against him and given an opportunity to submit his written statement of defence within a specified period. The defence statement, if any, submitted by the employee shall be taken into consideration by the Disciplinary Authority before passing orders.

Provided that in a case in which the Disciplinary Authority is of the opinion that an inquiry in the manner laid down under Rule 31 is necessary, such inquiry may be held purely on Disciplinary Authority's discretion.

2) The record of the proceedings shall include-

- (a) a copy of the charge-sheet stating the alleged charges delivered to the employee.
- (b) the evidence produced during the inquiry, if held; and
- (c) the orders of the Disciplinary Authority together with the reasons therefor.

34 Common Proceedings:

1) Where two or more employees are concerned in a case the Disciplinary Authority, or an Authority higher than it, who is competent to impose a penalty on such employees may make an order directing that disciplinary proceedings against all of them may be taken in a common proceeding and a specified Authority may function as the Disciplinary Authority for the purpose of such common proceedings.

2) Where it has been decided to hold an inquiry into charge(s) framed against two or more employees involved in the same or series of transactions, events, acts or omissions, the concerned Disciplinary Authority may direct that the inquiry into the charges against all the said employees shall be held by the same Inquiry Officer, and that the evidence recorded in the inquiry shall be read as evidence for the charge(s) framed against each employee concerned.

3) On conclusion of the inquiry, the Inquiry Officer shall make separate Report in respect of the charges framed against each of the employee concerned, and the provisions of Rule 31(19), 32 and 33 shall thereafter mutatis mutandis apply with respect to each such employee.

Explanation:

If there are more than one officer involved in a case, common proceedings are to be initiated, with the consent of the other Disciplinary Authority's, subject to following conditions:

- (i) The common proceedings should have emanated from a single case/matter/investigation.
- (ii) The employees proposed to be covered under common proceedings should not be governed by different set of conduct rules.
- (iii) The Disciplinary Authority, so decided for the purpose of common proceedings, will have the power to inflict any of the penalties under the CDA Rules.

35 Special Procedure in Certain Cases:

Notwithstanding anything contained in Rule 31 or 32 or 33, the Disciplinary Authority may impose any of the penalties specified in Rule 29 in any of the following circumstances:-

1) the employee has been convicted on a criminal charge, or on the strength of facts or conclusion arrived at by a judicial trial; or

2) where the Chairman or the Director is satisfied for the reasons to be recorded in writing that in the overall interest or the security of the Corporation, it is not expedient to hold any inquiry in the manner provided in these Rules.

36 Special Procedure in respect of Retiring Employees:

1) (a) Notwithstanding that an employee is entitled to and has retired or superannuated from the service of the Corporation, if disciplinary proceedings have been initiated while the employee was in service, the disciplinary proceedings shall continue and be concluded in the same manner as if the employee had continued in service.

(b) For the purposes of this Rule, a disciplinary proceeding shall be deemed to have been commenced as soon as a decision is taken by the Disciplinary Authority to commence disciplinary proceedings against the employee, even if a Charge-sheet pursuant to the said decision has not been or could not be served upon the employee prior to the date of his presumptive retirement or superannuation, as the case may be.

(c) Once such disciplinary proceedings have been commenced, it will be open to the Disciplinary Authority, at any time before the conclusion of the disciplinary proceedings, to add to any charge(s) by issue of a supplementary chargesheet, if necessary. The same procedure shall be followed with respect to the supplementary charges as is applicable with respect to the original charge(s) for which the disciplinary proceedings commenced.

(d) The penalty(ies) imposed on the employee as a result of such proceedings shall be deemed to have taken effect immediately prior to the employee's presumptive retirement or superannuation, as the case may be.

2) During the pendency of the disciplinary proceedings, the Disciplinary Authority may order for withholding payment of gratuity/ any other amount as deemed fit, keeping in view the gravity of charges for ordering the recovery from gratuity of the whole or part of any pecuniary loss caused to the Corporation if the employee is found in the disciplinary proceedings or judicial proceedings to have been guilty of offences/misconduct in terms of sub-section (6) of section 4 of the Payment of Gratuity Act, 1972 or to have caused pecuniary loss to the Corporation by misconduct or negligence, during his service including service rendered on deputation. However, the provisions of section 7(3) and 7(3A) of the Payment of Gratuity Act, 1972 are to be kept in view in the event of delayed payment.

36(A) Resignation:

Notwithstanding that an employee, who decides to resign from the services of Corporation may tender his resignation to the Competent Authority, such resignation will become operative only on acceptance by the Competent Authority. The Competent Authority reserves the right not to accept the resignation tendered by the employee, if an inquiry, investigation or prosecution is pending or contemplated against the employee. Provided that, If the Competent Authority decides to accept the resignation, the employee may be relieved from the Corporation after clearing all dues of the Corporation.

36(B) Voluntary Retirement

Notwithstanding that an employee, who decides to seek voluntary retirement from the services of the Corporation under the specific Voluntary Retirement Scheme launched by the Corporation from time to time, may submit his application as per the provisions of such Scheme, the Competent Authority reserves the right not to accept the application, if an inquiry, investigation

or prosecution is pending or contemplated against the employee even if the employee is eligible to be considered for voluntary retirement as per the provisions of the scheme. Provided that, If the Competent Authority decides to accept such request for voluntary retirement, the employee may be relieved from the Corporation after clearing all dues of the Corporation.

37 Employees on Deputation from the Central Government or The State Government etc.:

1) Where an order of suspension is made or disciplinary proceedings are taken against an employee who is on deputation to the Corporation from the Central or State Government or another Public Undertaking, or a local Authority, the Authority lending his services (hereinafter referred to as the Lending Authority) shall forthwith be informed of the circumstances leading to the order of his suspension, or the commencement of the disciplinary proceedings, as the case may be.

2) In the light of the findings in the disciplinary proceedings taken against the employee

(a) If the Disciplinary Authority is of the opinion that any of the penalties from amongst those specified at (1) to (9) in Rule 29 should be imposed on him, it may pass such orders on the case as it deems necessary after consultation with the Lending Authority;

Provided that in the event of a difference of opinion between the Disciplinary Authority and the Lending Authority, the services of the employee shall be placed at the disposal of the Lending Authority.

(b) If the Disciplinary Authority is of the opinion that any of the penalties at (10), (11), (12) and (13) in Rule 29 should be imposed on him, it should place his services at the disposal of the Lending Authority and transmit to it, the proceedings of the inquiry for such action as it deems necessary.

3) If the employee submits, an appeal against an order imposing a penalty on him under sub rule (2) (a), it will be disposed of after consultation with the Lending Authority;

Provided that if there is a difference of opinion between the Appellate Authority and the Lending Authority, the services of the employee shall be placed at the disposal of the Lending Authority, and the proceedings of the case shall be transmitted to that Authority for such action, as it deems necessary.

37(A). IOCL Employees posted out on Deputation:

1) JVs – CDA Rules of IOCL shall be applicable to employees

2) Ministerial Assignments i.e., CHT, OISD, PNGRB etc – CDA shall be from the Parent Division and Parent Divisional Director shall nominate the CDA.

3) SDI/IOF – Dir (HR) shall be the CDA

38 Appeals:

1) An employee may appeal against an order imposing upon him any of the penalties specified in Rule 29 or against the order of suspension referred to in Rule 26. The appeal shall lie to the Authority specified in the schedule.

2) An appeal shall be preferred within 60 days from the date of communication of the order appealed against. The appeal shall be addressed to the Appellate Authority specified in the schedule and submitted to the Authority whose order is appealed against. The Authority whose order is appealed against shall forward the appeal together with its comments and the records of the case to the Appellate Authority. The Appellate Authority shall consider whether the findings are justified or whether the penalty is excessive or inadequate and pass appropriate orders. The Appellate Authority may pass orders confirming, enhancing, reducing or setting aside the penalty

or remitting the case to the Authority which imposed the penalty or to any other Authority with such direction as it may deem fit in the circumstances of the case.

Provided that if the enhanced penalty which the Appellate Authority proposes to impose is a major penalty specified in Rule 29 and an inquiry as provided in Rule 31 has not already been held in the case, the Appellate Authority shall direct that such an inquiry be held in accordance with the provisions of Rule 31 and thereafter consider the record of the inquiry and pass such orders as it may deem proper. If the Appellate Authority decides to enhance the punishment but an inquiry has already been held as provided in Rule 31 the Appellate Authority shall give a show-cause notice to the employee as to why the enhanced penalty should not be imposed upon him. The Appellate Authority shall pass final orders on the appeal after taking into account the representation, if any, submitted by the employee.

3) Every employee submitting an appeal shall do so separately and in his own name.

4) Every appeal referred under these Rules shall contain all material statements and arguments relied on by the appellant and shall contain no disrespectful and/or improper language and shall be complete in itself.

5) The Authority who passed the order, which is appealed against, may withhold the appeal if it is not made in accordance with the rules and submitted within the time limit, or if it is repetition of an appeal already decided.

38(A) Review

1) The Reviewing Authority for the purpose of this Rule shall mean the Appellate Authority or any Authority higher than it, as the case may be.

2) Notwithstanding anything contained in these Rules, the Reviewing Authority may at any time within six months of the date of final order, either on his own motion or otherwise call for the records of any enquiry and revise any order made under these Rules or under the Rules from which an appeal is allowed, but from which no appeal has been preferred and may for sufficient cause:

(a) modify or set aside the order; or

(b) reduce, enhance or set aside the penalty imposed by the order, or impose any penalty where no penalty has been imposed; or

(c) remit the case to the Authority directing such Authority to make or cause to be made such further inquiry as it may consider proper in the circumstances of the case; or

(d) pass such other orders as it may deem fit.

Provided that if the Reviewing Authority proposes to enhance the penalty already imposed and the proposed penalty is a major penalty as specified in Rule 29 and an inquiry as provided in Rule 31, has not already been held in that case, the Reviewing Authority shall direct that such an inquiry be held in accordance with the provisions of the Rule 31 and thereafter, consider the record of the inquiry and pass such order as it may deem proper. If the Reviewing Authority decides to enhance the punishment but an inquiry has already been held as provided in Rule 31, the Reviewing Authority shall give a show cause notice to the employee as to why the enhanced penalty shall not be imposed upon him. The Reviewing Authority shall pass the final order after taking into account the representation, if any, submitted by the employee.

38(B) Other actions:

Any disciplinary proceedings initiated against an employee or the imposition of any of the penalties specified in Rule 29 on an employee shall be in addition to and without prejudice to any other rights or remedies available to the Corporation arising out of the same transaction(s), event(s), act(s) or omission(s) including, but not limited to the right of civil action and of criminal action and the rights under any other law for the time being in force

39 Premature Retirement:

1) Without prejudice to, and independent of the rights of the Corporation to dispense with the services of employees either under the contract of employment or under these Rules or on grounds of medical unfitness irrespective of the age of an employee, an employee designated as officer who has attained the age of 50 years or has served the Corporation for more than 30 years (In the case of Officer who had joined the Corporation at the age of 35 years or above, on his/her attaining the age of 55 years) and is considered to be inefficient or of doubtful integrity may be prematurely retired by the Competent Authority by giving him advance notice of not less than 3 months in writing.

2) The criteria for judging inefficiency or doubtful integrity shall be as follows:-

(a) Inefficiency: Inefficiency will be evaluated on the basis of the final score obtained by the concerned officer in his Annual Performance Appraisal (APA)/e-PMS. An Officer may be considered for premature retirement wherein the final score obtained by him falls in the bottom five percent of the representative group of the same grade, twice during the preceding five years, provided APA/e-PMS score of the Officer were finalized by two different Counter Signing Officers. If not, an opportunity will be afforded to the officer to be assessed by another Counter Signing Officer. For the purpose of this rule the final APA/e-PMS score shall mean the score finalized at the level of Counter Signing Officer/Appellate Authority.

Provided officers who have been rated Very Good/ Outstanding in the last 5 years even if falling in the bottom five percent of the group may be excluded. Similarly, those who have been promoted in last 5 years, except for those cases where criteria of promotion was seniority, may also be excluded.

(b) Doubtful Integrity: Integrity of an Officer shall be determined on the basis of his past record of service. An Officer may be considered for pre-mature retirement when, as per the records of the Corporation, there are two proven instance of misconduct relating to his integrity during the entire preceding service.

3) Procedure for premature retirement:-

The cases of officers falling within the above mentioned criteria shall be reviewed six months before they attain the age of 50 years (In the case of Officer who had joined the Corporation at the age of 35 years or above, before their attaining the age of 55 years) or completed 30 years of service whichever is earlier. Time schedule for review is as under:

Sl. No.	Quarter in which review is to be made	Cases of employee who will be attaining the age of 50/55 years or would be completing 30 years of service
1	January to March	July to September of the same year
2	April to June	October to December of the same year
3	July to September	January to March of the next year
4	October to December	April to June of the next year

(ii) A list of such employees attaining the age of 50 or 55 years (as the case may be) or completing 30 years of service, whichever is earlier and falling within the criteria of Inefficiency and/or Doubtful Integrity shall be prepared by the respective Division.

(iii) The concerned Divisional/Functional Director shall constitute a Committee of Executive Directors for reviewing and recommending the cases of premature retirement pertaining to their respective Division/Corporate Function. For the purpose of this rule the Committee of Executive Directors so constituted by the Divisional/Functional Director shall be the "Recommending Authority".

(iv) Cases falling within the aforementioned criteria shall be referred to the "Recommending Authority" which shall examine the cases for recommendation as to whether the concerned officer should be retained or prematurely retired from service.

(v) The concerned Divisional/Functional Director shall consider the cases recommended by the "Recommending Authority" for taking a decision for prematurely retiring the Officer(s) as per the provisions of this rule. For the purpose of this rule the concerned Divisional/Functional Director shall be the "Competent Authority".

(vi) Employees considered by the Competent Authority for premature retirement shall be served with a three months' notice informing about the decision of his/her premature retirement.

(vii) The employee against whom action for premature retirement has been taken may prefer a representation within 30 days of the receipt of the notice for premature retirement. The representation shall be addressed to the "Representation Committee" and submitted to the Authority against whose notice the representation is made. The Authority against whose notice, the representation is made shall forward the representation together with its comments and the relevant record to the Representation Committee. Upon consideration of the representation vis-à-vis comments of the Competent Authority and relevant record, the Representation Committee shall dispose of the representation either agreeing with the decision of the Competent Authority or otherwise within 30 days from the date of representation or by the date of premature retirement as mentioned in the notice, whichever is earlier. For the purpose of this rule, the representation committee shall consist of any three Directors of the Corporation except the Director who has acted as Competent Authority in the matter.

(viii) In case no representation, within the stipulated time as mentioned above, is received from the employee to whom the notice for premature retirement has been served, the decision of the Competent Authority shall be considered as final.

(ix) The benefits admissible to those retiring prematurely will be as under:-

(a) Provident Fund, Gratuity, Encashment of leave, Benefits under Corporation's Superannuation Benefit Fund Scheme, Post-Retirement Medical Scheme in accordance with the respective rules governing each of these entitlements/benefits.

(b) Transfer benefits for self and family for proceeding to Home Town or to a place where he intends to settle down in India in accordance with the TA Rules.

39(A) Medical Unfitness:

1) Without prejudice to, and independent of the rights of the Corporation to dispense with the services of employees either under the contract of employment or under these Rules, irrespective of the age, length of past service or left over period till presumptive date of his retirement, services of an employee designated as officer, who is medically unfit may be terminated by the Competent Authority by giving him notice of not less than 3 months in writing. For the purpose of this rule, the concerned Divisional/Functional Director shall be the Competent Authority.

2) Head of HR of Unit/Region/HO/Corporate Function to which the employee is concerned may, on medical grounds, refer an Officer to a Medical Board comprising of not less than 2 Medical Officers of the Corporation apart from a Specialist in any of the following circumstances for a medical checkup and report on the nature and prognosis of disease, if any, that he is suffering from. (The term 'Medical Officer' of the Corporation would include a Medical Practitioner as may have been retained by the Corporation.)

(i) when an Officer owing to apparent physical or mental infirmity or deterioration in general health, is unable to discharge his duties;

(ii) when an Officer is reported to be suffering from incurable and infectious/contagious disease;

(iii) when an Officer is suffering from a curable disease but is not likely to be fit to resume his normal duties within a period of 12 months;

(iv) when an Officer, though attending duties, is found to be mentally deranged, or suffering from lunacy or mental infirmity;

(v) when an Officer has been on leave for reasons of sickness for total period of 120 days including Sundays, holidays and other closed days or more, during a continuous period of six months; or

(vi) when an Officer not on maternity leave has been continuously on leave on medical grounds for 12 weeks including Sundays, holidays and other closed days.

3) The report of the Medical Board, together with his attendance record etc. shall be considered by the Authority who had referred the case to Medical Board and shall be placed before the Competent Authority for considering the case for termination of services of the concerned officer. Based upon the report of the Medical Board and other relevant records, the Competent Authority may consider an employee as medically unfit to continue with the services of the Corporation and separation of the services of an officer on medical grounds under the rules provided:

(i) the employee is not fit to resume his duties within a period of 12 months, or

(ii) the employee is suffering from lunacy or mental derangement and his services cannot be effectively utilized by the Corporation, or

(iii) the employee is suffering from incurable and infectious/contagious disease and his attendance is likely to pose health hazards to others.

4) An Officer who is considered as unfit to continue with the services of the Corporation shall be served with a three months' notice informing about the decision of termination of his/her service on grounds of medical unfitness.

5) The officer against whom action for termination of service on grounds of medical unfitness has been taken may prefer a representation within 30 days of the receipt of such notice. The representation shall be addressed to the "Representation Committee" and submitted to the Authority against whose notice the representation is made. The Authority against whose notice, the representation is made shall forward the representation together with its comments and the relevant record to the Representation Committee. Upon consideration of the representation vis-à-vis Comments of the Competent Authority and relevant record, the Representation Committee shall dispose of the representation either agreeing with the decision of the Competent Authority or otherwise within 30 days from the date of representation. For the purpose of this rule the representation committee shall be consist of any three Directors of the Corporation except the Director who has acted as Competent Authority in the matter.

6) In case no representation, within the stipulated time as mentioned above, is received from the

employee to whom the notice for termination of service on medical grounds has been served, the decision of the Competent Authority shall be considered as final.

7) The benefits admissible on termination of services on grounds of medical unfitness shall be in accordance with the Corporation's scheme for Premature Retirement on Medical grounds.

40 Service of Orders, Notices, etc.:

Every order, notice and other process made or issued under these rules shall be served in person on the employee concerned or communicated to him by registered/ speed-post at his last known address and additionally by E-mail(s)/ any other mode of communication.

41 Power to Relax Time-Limit and to Condone Delay:

Save as otherwise expressly provided in these rules, the Authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these rules or anything required to be done under these rules or condone any delay.

42 Savings:

Any amendment to these Rules shall, unless to the contrary provided in any specific amendment, be deemed to specifically include and provide as follows:

1) Disciplinary proceeding in respect of any misconduct or breach committed prior to the issue of the amendment may be initiated, continued and concluded under the amended Rules even if such act or omission is not a misconduct or breach under the Rules as amended;

2) Any disciplinary proceedings pending as on date of the amendment to these Rules shall be continued and disposed of by the Disciplinary Authority prescribed under the amended Rules in accordance with the provisions of the amended Rules, as if such proceedings were initiated under the amended Rules;

3) Any appeal or review pending as on date of the amendment to these Rules against an order made before the amendment shall be considered and decided and orders in respect thereof shall be passed by the Appellate or Reviewing Authority prescribed under the amended Rules in accordance with the amended Rules, as if such appeal was filed under the amended Rules or the review was undertaken under the amended Rules.

4) If by virtue of any amendment the Appellate Authority or Reviewing Authority is the same or of the same rank or inferior in rank to the Disciplinary Authority, then notwithstanding the amendment, the Appellate or Reviewing Authority, as the case may be, shall be the next Authority in the Corporation higher in rank than the Disciplinary Authority.

43 Notification of Authorities:

The various Authorities under these rules may be prescribed and notified, as required from time to time, with the approval of Chairman.

44 Removal of Doubts:

Where a doubt arises as to the interpretation of any of these rules, the matter shall be referred to the Chairman for final decision. Likewise, any instructions in the nature of clarifications to these rules shall issue with the approval of Chairman.

45 Amendments:

The Board may amend, modify or add to these Rules, from time to time, and all such amendments, modifications or additions shall take effect from the date stated therein.

SCHEDULE-1

Category of Employees	Disciplinary Authority	Appellate Authority
Marketing Division:		
Officers in Grade Ao to C	CGM-HO/Head of RO/SO (not below Grade "H")	Concerned Functional Head of the Department (not below Grade "H")
Officers in Grade D to G	Concerned Functional Head of the Department (not below Grade "H")	Director (M)
Officers in Grade H & I	Director (M)	Chairman
Refineries Division		
Non- Officers	Officers in Grade C or above	Concerned Functional Head of the Department (not below Grade "H")
Officers in Grade Ao to F at Refinery Units	Unit Head (not below Grade "H")	Director (R)
Officers in Grade Ao to F at Headquarters and Calcutta Office	Concerned Functional Head of the department (not below Grade "H")	Director (R)
Officers in Grade G, H & I	Director (R)	Chairman
Pipelines Division		
Non- Officers	Officers in Grade C or above	Region/Unit Head (not below Grade H")
Officers in Grade Ao to F at Pipelines Region/Units	Region/Unit Head (not below Grade "H")	Director (PL)
Officers in Grade Ao to F at Pipelines HO	Concerned Functional Head of the department (not below Grade "H")	Director (PL)
Officers in Grade G, H & I	Director (PL)	Chairman
Research & Development Centre:		
Non-Officers	Officers in Grade C or above	Concerned Functional Head of the department (not below Grade "H")
Officers in Grade Ao to F	Concerned Functional Head of the department (not below Grade "H")	Director (R & D)
Officers in Grade G, H & I	Director (R & D)	Chairman
Planning & Business Development Group:		
Non-Officers	Officers in Grade C or above	Concerned Functional Head of the department (not below Grade "H")
Officers in Grade Ao to F	Concerned Functional Head of the department (not below Grade "H")	Director (P & BD)
Officers in Grade G, H & I	Director (P & BD)	Chairman
Corporate Office Excluding Planning & Business Development Group:		
Non-Officers	Officers in Grade C or above	Concerned Functional Head of the department (not below Grade "H")
Officers in Grade Ao to F	Concerned Functional Head of the Department (not below Grade "H")	Concerned Functional/ Divisional Director
Officers in Grade G, H & I	Concerned Functional/ Divisional Director	Chairman
Officers in Grade G, H & I for departments/ functions directly reporting to Chairman	Director (HR)	Chairman

SCHEDULE-2

Issuance of Recordable Warning/ Warning/ Caution/Counseling:

Sl. No.	Grade of the officer	Decision by
1	Upto Grade F	Concerned Chief General Manager/General Manager (In-charge) (concerned Functional/Regional/Unit/State Head to be kept informed)
2	Grade G	Concerned Functional/Regional/Unit/State Head (not below Grade H) (concerned Divisional/Functional Director to be kept informed)
3	Grade H & I	Concerned Divisional/Functional Director (Chairman to be kept informed)